JS 44 (Rev. 03/24)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

Ngwa Nforbi, Brendan

(b) County of Residence of First Listed Plaintiff San Joaquin
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys *(Firm Name, Address, and Telephone Number)*

Brendan Ngwa Nforbi, Plaintiff, In Propria Persona
1455 Cat Tail Drive, Stockton, CA 95204
Tel: (209) 801-4442; E-mail: bnn.cdl@gmail.com

DEFENDANTS

Swift Transportation Co. of Arizona LLC

County of Residence of First Listed Defendant
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☐ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ◉ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*

(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☑ 1	☐ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☐ 4
Citizen of Another State	☐ 2	☑ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☐ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury - Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury - Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC 158
- ☐ 423 Withdrawal 28 USC 157

INTELLECTUAL PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent - Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS—Third Party 26 USC 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced and Corrupt Organizations
- ☐ 480 Consumer Credit (15 USC 1681 or 1692)
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

CIVIL RIGHTS
- ☐ 440 Other Civil Rights
- ☐ 441 Voting
- ◉ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities - Employment
- ☐ 446 Amer. w/Disabilities - Other
- ☐ 448 Education

PRISONER PETITIONS

Habeas Corpus:
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

Other:
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee - Conditions of Confinement

V. ORIGIN *(Place an "X" in One Box Only)*

◉ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District *(specify)* ☐ 6 Multidistrict Litigation - Transfer ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
Cal. Penal Code § 290.46(j)(2)(E); Civ. Code §§ 1786.40, 1786.50 (jurisdiction: 28 U.S.C. §§ 1332, 1367)

Brief description of cause:
Unauthorized employment use of Penal Code § 290.46 information in a Class A Driver denial; ICRAA adverse-action advice; UCL.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $ Exceeds $75,000

CHECK YES only if demanded in complaint:
JURY DEMAND: ◉ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions): JUDGE Hon. Dale A. Drozd (Sacramento) DOCKET NUMBER 2:26-cv-02847; 2:26-cv-02881

DATE 09/15/2026

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

I.(a) Plaintiffs-Defendants. Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

(b) County of Residence. For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)

(c) Attorneys. Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".

II. Jurisdiction. The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below**; NOTE: federal question actions take precedence over diversity cases.**)

III. Residence (citizenship) of Principal Parties. This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

IV. Nature of Suit. Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: Nature of Suit Code Descriptions.

V. Origin. Place an "X" in one of the seven boxes.
Original Proceedings. (1) Cases which originate in the United States district courts.
Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket.
PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7. Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.

VI. Cause of Action. Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service.

VII. Requested in Complaint. Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

VIII. Related Cases. This section of the JS 44 is used to reference related cases, if any. If there are related cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.

UNITED STATES DISTRICT COURT

for the

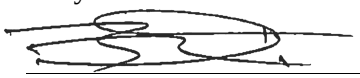
Eastern District of California

Brendan Ngwa Nforbi	)	
Plaintiff/Petitioner	)	
v.	)	Civil Action No.
Swift Transportation Co. of Arizona LLC	)	
Defendant/Respondent	)	

APPLICATION TO PROCEED IN DISTRICT COURT WITHOUT PREPAYING FEES OR COSTS (Long Form)

Affidavit in Support of the Application

I am a plaintiff or petitioner in this case and declare that I am unable to pay the costs of these proceedings and that I am entitled to the relief requested. I declare under penalty of perjury that the information below is true and understand that a false statement may result in a dismissal of my claims.

Signed: 

Instructions

Complete all questions in this application and then sign it. Do not leave any blanks: if the answer to a question is "0," "none," or "not applicable (N/A)," write that response. If you need more space to answer a question or to explain your answer, attach a separate sheet of paper identified with your name, your case's docket number, and the question number.

Date: September 15, 2026

1. For both you and your spouse estimate the average amount of money received from each of the following sources during the past 12 months. Adjust any amount that was received weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate. Use gross amounts, that is, amounts before any deductions for taxes or otherwise.

Income source	Average monthly income amount during the past 12 months		Income amount expected next month	
	You	Spouse	You	Spouse
Employment	$ 0	$ 0	$ 0	$ 0
Self-employment	$ 0	$ 0	$ 0	$ 0
Income from real property *(such as rental income)*	$ 0	$ 0	$ 0	$ 0
Interest and dividends	$ 0	$ 0	$ 0	$ 0
Gifts	$ 0	$ 0	$ 0	$ 0
Alimony	$ 0	$ 0	$ 0	$ 0
Child support	$ 0	$ 0	$ 0	$ 0

Retirement *(such as social security, pensions, annuities, insurance)*	$ 0	$ 0	$ 0	$ 0
Disability *(such as social security, insurance payments)*	$ 0	$ 0	$ 0	$ 0
Unemployment payments	$ 0	$ 0	$ 0	$ 0
Public-assistance *(such as welfare)*	$ 0	$ 0	$ 0	$ 0
Other *(specify)*:	$ 0	$ 0	$ 0	$ 0
Total monthly income:	$ 0	$ 0	$ 0	$ 0

2. List your employment history for the past two years, most recent employer first. *(Gross monthly pay is before taxes or other deductions.)*

Employer	**Address**	**Dates of employment**	**Gross monthly pay**
Unemployed	N/A	N/A	$ 0
N/A	N/A	N/A	$ 0

3. List your spouse's employment history for the past two years, most recent employer first. *(Gross monthly pay is before taxes or other deductions.)*

Employer	**Address**	**Dates of employment**	**Gross monthly pay**
N/A	N/A	N/A	$ 0
N/A	N/A	N/A	$ 0
N/A	N/A	N/A	$ 0

4. How much cash do you and your spouse have? $ 0

Below, state any money you or your spouse have in bank accounts or in any other financial institution.

Financial institution	**Type of account**	**Amount you have**	**Amount your spouse has**
N/A	N/A	$ 0	$ 0
N/A	N/A	$ 0	$ 0
N/A	N/A	$ 0	$ 0

If you are a prisoner, you must attach a statement certified by the appropriate institutional officer showing all receipts, expenditures, and balances during the last six months in your institutional accounts. If you have multiple accounts, perhaps because you have been in multiple institutions, attach one certified statement of each account.

5. List the assets, and their values, which you own or your spouse owns. Do not list clothing and ordinary household furnishings.

Assets owned by you or your spouse	
Home *(Value)*	$ 0
Other real estate *(Value)*	$ 0
Motor vehicle *#1 (Value)*	$ 0
Make and year: N/A	
Model: N/A	
Registration #: N/A	
Motor vehicle *#2 (Value)*	$ 0
Make and year: N/A	
Model: N/A	
Registration #: N/A	
Other assets *(Value)*	$ 0
Other assets *(Value)*	$ 0

6. State every person, business, or organization owing you or your spouse money, and the amount owed.

Person owing you or your spouse money	**Amount owed to you**	**Amount owed to your spouse**
N/A	**$** N/A	**$** 0
N/A	**$** N/A	**$** 0
N/A	**$** N/A	**$** 0

7. State the persons who rely on you or your spouse for support.

Name (or, if under 18, initials only)	**Relationship**	**Age**
N/A	0	0
N/A	0	0
N/A	0	0

8. Estimate the average monthly expenses of you and your family. Show separately the amounts paid by your spouse. Adjust any payments that are made weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate.

	You	Your spouse
Rent or home-mortgage payment *(including lot rented for mobile home)* Are real estate taxes included? ❒ Yes ☑ No Is property insurance included? ❒ Yes ☑ No	$ 0	$ 0
Utilities *(electricity, heating fuel, water, sewer, and telephone)*	$ 0	$ 0
Home maintenance *(repairs and upkeep)*	$ 0	$ 0
Food	$ 0	$ 0
Clothing	$ 0	$ 0
Laundry and dry-cleaning	$ 0	$ 0
Medical and dental expenses	$ 0	$ 0
Transportation *(not including motor vehicle payments)*	$ 0	$ 0
Recreation, entertainment, newspapers, magazines, etc.	$ 0	$ 0
Insurance *(not deducted from wages or included in mortgage payments)*		
Homeowner's or renter's: N/A	$ 0	$ 0
Life: N/A	$ 0	$ 0
Health: N/A	$ 0	$ 0
Motor vehicle: N/A	$ 0	$ 0
Other: N/A	$ 0	$ 0
Taxes *(not deducted from wages or included in mortgage payments) (specify):*	$ 0	$ 0
Installment payments		
Motor vehicle: N/A	$ 0	$ 0
Credit card *(name)*: N/A	$ 0	$ 0
Department store *(name)*: N/A	$ 0	$ 0
Other: N/A	$ 0	$ 0
Alimony, maintenance, and support paid to others	$ 0	$ 0

Regular expenses for operation of business, profession, or farm *(attach detailed statement)*	**$** 0	**$** 0
Other *(specify)*: N/A	**$** 0	**$** 0
Total monthly expenses:	**$** 0	**$** 0

9. Do you expect any major changes to your monthly income or expenses or in your assets or liabilities during the next 12 months?

❒ Yes ☑ No If yes, describe on an attached sheet.

10. Have you spent — or will you be spending — any money for expenses or attorney fees in conjunction with this lawsuit? ❒ Yes ☑ No

If yes, how much? $ N/A

11. Provide any other information that will help explain why you cannot pay the costs of these proceedings.
I am unemployed and cannot pay the $405 filing fee. This is an employment action. Swift denied my Class A Driver application on October 5, 2023 after consumer-report screening. I have no wages from that job.

12. Identify the city and state of your legal residence.
Stockton, California

Your daytime phone number: (209) 801-4442

Your age: N/A Your years of schooling: N/A

Last four digits of your social-security number: N/A

UNITED STATES DISTRICT COURT

for the

Eastern District of California

Brendan Ngwa Nforbi *Plaintiff(s)* v. Swift Transportation Co. of Arizona LLC, a Delaware limited liability company *Defendant(s)*	)	Civil Action No.

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Swift Transportation Co. of Arizona LLC
c/o National Registered Agents, Inc.
330 N Brand Blvd, Suite 700
Glendale, CA 91203

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are: Brendan Ngwa Nforbi
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442 — E-mail: bnn.cdl@gmail.com

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

_____
Signature of Clerk or Deputy Clerk

Civil Action No.

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* Swift Transportation Co. of Arizona LLC was received by me on *(date)* _____ .

❒ I personally served the summons on the individual at *(place)* _____ on *(date)* _____ ; or

❒ I left the summons at the individual's residence or usual place of abode with *(name)* _____ , a person of suitable age and discretion who resides there, on *(date)* _____ , and mailed a copy to the individual's last known address; or

❒ I served the summons on *(name of individual)* _____ , who is designated by law to accept service of process on behalf of *(name of organization)* _____ on *(date)* _____ ; or

❒ I returned the summons unexecuted because _____ ; or

❒ Other *(specify):*

My fees are $ _____ for travel and $ _____ for services, for a total of $ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information regarding attempted service, etc:

Print Save As... Reset

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SWIFT TRANSPORTATION CO. OF ARIZONA LLC, a Delaware limited liability company, d/b/a SWIFT TRANSPORTATION,** Defendant.	Case No. _____ **COMPLAINT FOR DAMAGES** (1) Cal. Penal Code section 290.46(j); (2) ICRAA, Cal. Civ. Code sections 1786.40, 1786.50; (3) UCL, Cal. Bus. & Prof. Code section 17200 *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges against Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC ('Swift') as follows:

INTRODUCTION

1. In September 2023, Plaintiff applied to Swift for a Class A Driver position. On September 26, 2023, Swift sent a password-protected pre-adverse packet. The National Sex Offender Public Website component of that packet remained 'Processing' on every snapshot furnished to Plaintiff. On October 5, 2023, Swift sent a post-adverse letter stating that it had decided not to employ him based in whole or in part on consumer reports from Asurint, Tenstreet, DriverIQ, FMCSA-DOT, and Equifax Work Number.

2. The September 26 packet has been decrypted. Plaintiff alleges its adjudication results as known facts. He does not republish Social Security, date-of-birth, CDL, or telephone identifiers from that packet. National criminal without a sex-offender component returned Clear. Federal criminal returned Clear. Completed county criminal searches returned Clear. NSOPW remained Processing. The furnished packet contains neither a completed NSOPW hit nor a completed NSOPW no-record, and it does not state 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' FMCSA Clearinghouse returned Driver Not Prohibited.

3. What the packet does contain -- a Class A commercial driver's license, an April 22, 2022 improper-lane moving violation with zero points, PSP inspection history, and a CDLIS license-identity match -- is not information disclosed pursuant to Penal Code section 290.46. Those components do not themselves explain a registry-based denial.

4. Plaintiff alleges, on information and belief and as an ultimate fact, that the in-process NSOPW component was drawing California Megan's Law website / California Department of Justice registry data concerning Plaintiff, and that Swift used that preliminary output, in whole or in part, in the October 5, 2023 decision. NSOPW is not automatically information disclosed pursuant to Penal Code section 290.46. The printed snapshots do not contain a completed hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The vendor adjudication log, any later NSOPW return, and the decision-maker communications are exclusively in Defendants' possession.

5. Federal motor-carrier screening does not swallow this claim. The Clearinghouse and Pre-Employment Screening Program concern drug-and-alcohol violations and crash or inspection history. They are not Penal Code section 290.46 disclosures. An employer that may lawfully obtain ordinary safety records is not thereby authorized to use Megan's Law website information for employment. Penal Code section 290.46(j)(3) says so.

6. This complaint does not plead the Fair Credit Reporting Act as a count. Swift sent FCRA-captioned pre-adverse and post-adverse letters in 2023. The two-year FCRA discovery clock from those letters would have closed in 2025. The position is a Class A commercial-driver assignment. Subject-matter jurisdiction is diversity and supplemental jurisdiction, not a time-barred FCRA claim. Plaintiff does not presently plead 15 U.S.C. section 1681b(b)(3)(A) or the DOT-driver notice provisions. He reserves amendment if production shows a timely FCRA claim that those letters did not cure.

7. Plaintiff does not name Knight-Swift Transportation Holdings, Inc., merely as parent. He does not presently name Asurint, Tenstreet, DriverIQ / Cisive, or Equifax as defendants. Robin Kaufman and Matt Hutto are witnesses. This complaint is unverified.

JURISDICTION AND VENUE

8. This Court has original subject-matter jurisdiction under 28 U.S.C. section 1332(a)(1) because this is a civil action between citizens of different States and the amount in controversy exceeds $75,000, exclusive of interest and costs.

9. Plaintiff is a citizen of California. He resides in Stockton, San Joaquin County, California, and is domiciled in California.

10. Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC is a Delaware limited liability company. The California Secretary of State records it as a foreign Delaware limited liability company, entity 201014710033. A public SEC Exhibit 21.1 of Knight-Swift Transportation Holdings, Inc., lists Swift Transportation Co. of Arizona, LLC as a Delaware limited-liability-company subsidiary. That listing is not a complete membership roll, and it is not a pleading that Knight-Swift is a defendant or a member. Swift's own October 5, 2023 letter

uses 2200 South 75th Avenue, Phoenix, Arizona. The citizenship of a limited liability company is the citizenship of each of its members. Plaintiff does not invent those members. On information and belief, no member of Swift is a citizen of California. If Swift contests complete diversity, it can disclose its members under Federal Rule of Civil Procedure 7.1.

11. The amount in controversy exceeds $75,000, exclusive of interest and costs. Plaintiff seeks, without double recovery, lost Class A Driver employment according to proof, emotional-distress damages according to proof, and the actual, additional, fee, and exemplary remedies authorized by Penal Code section 290.46(j)(4)(A). He does not rely on the statute's optional civil-penalty slice, and he does not rely on ICRAA's $10,000 statutory floor, to manufacture the jurisdictional amount. The file does not state a wage rate. Plaintiff does not invent one. He alleges in good faith that those aggregated claims exceed $75,000.

12. This Court has supplemental jurisdiction over the California claims under 28 U.S.C. section 1367(a) because they arise from the same Class A Driver application, screening, and denial as the controversy over which original jurisdiction is invoked.

13. This Court has personal jurisdiction over Swift because Swift recruited Plaintiff, a California resident; caused consumer reports to be procured about him; sent the pre-adverse and post-adverse communications to him in California; and is, on information and belief, qualified to transact business in California.

14. Venue is proper in this District under 28 U.S.C. section 1391(b)(2) because a substantial part of the events giving rise to the claims occurred in San Joaquin County, California, where Plaintiff resides, received the recruiting and screening communications, and received the adverse-action letters.

15. Under Eastern District of California Local Rule 120(d), civil actions arising in San

Joaquin County are commenced in the Sacramento Division.

PARTIES

16. Plaintiff BRENDAN NGWA NFORBI is a natural person and a citizen of California, residing in Stockton, San Joaquin County, California. He is also identified in records as Brendan Ngehsi Ngwa Nforbi and Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

17. Plaintiff is required to register under Penal Code section 290. At all times relevant, information identifying him appeared on California's Megan's Law website operated pursuant to Penal Code section 290.46.

18. Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC is a Delaware limited liability company doing business as Swift Transportation. Its October 5, 2023 letter lists 2200 South 75th Avenue, Phoenix, Arizona 85043. On September 25, 2023, the FMCSA Clearinghouse identified the querying employer as SWIFT TRANSPORTATION CO OF ARIZONA LLC, USDOT number 54283.

19. Plaintiff will serve Swift through its designated agent for service of process on the California Secretary of State record as of the date of service. Public listings have used National Registered Agents, Inc. Plaintiff will confirm the current listing immediately before service. Service is not to be made at a terminal or a recruiter's phone number.

20. Asurint, Tenstreet, LLC, DriverIQ / Cisive, FMCSA, and Equifax Workforce Solutions / The Work Number are named in Swift's own October 5 letter as sources of consumer reports. They are inspection targets and fact witnesses, not presently named as defendants.

21. Robin Kaufman and Matt Hutto communicated as Swift driver recruiters. They are percipient witnesses, not presently named as defendants. Matt Hutto's message used a Class A Recruiting address while stating it was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC, 120 West 3rd Street, Tulsa, Oklahoma.

TIMELINESS

22. Penal Code section 290.46 does not prescribe its own limitations period. Count One is a liability created by statute, timely under Code of Civil Procedure section 338(a). Three years from September 26, 2023, is September 26, 2026. Three years from October 5, 2023, is October 5, 2026. This complaint is prepared to be filed inside both dates. Plaintiff does not plead a delayed-discovery date for this count.

23. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340(a) supplies the period for Count One. The actual-damages and discretionary enhancement in section 290.46(j)(4)(A) are a liability created by statute, not an action upon a statute for a penalty. The labeled civil-penalty slice is pleaded in the alternative and is not the sole theory.

24. Civil Code section 1786.52 requires that an ICRAA action be brought within two years from the date the plaintiff knew or should have known of the violation. The 2023 letters described consumer reports and named agencies. They did not advise that an investigative consumer report had been obtained. The face of this complaint does not establish the discovery date as a complete bar.

25. The Unfair Competition Law claim is timely under Business and Professions Code section 17208's four-year period. That period is independent of any shorter period that may apply to a borrowed predicate.

FACTUAL ALLEGATIONS

A. The Swift Application

26. On Friday, September 22, 2023, at 3:02 p.m., Robin Kaufman, identifying herself as a Swift Transportation Driver Recruiter, emailed Plaintiff that she had received his information and asked him to complete the full application. The message was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

27. That evening at 10:03 p.m., Matt Hutto, also identifying himself as a Swift Driver Recruiter, emailed that he was trying to reach Plaintiff, asked him to complete the full driver application, and gave 803-564-3092 as a return number.

28. The application was for a Class A Driver position. The file does not contain the completed application, a written offer, a terminal assignment, or a rate of pay. Plaintiff does not invent those figures.

B. The September 25, 2023 Screen

29. On Monday, September 25, 2023, at 11:54 a.m., Tenstreet notified Plaintiff that a DriverIQ employment background document ordered in connection with Swift was available in Driver Pulse.

30. Four minutes later, the FMCSA Office of Safety Programs emailed that SWIFT TRANSPORTATION CO OF ARIZONA LLC (USDOT 54283) had requested access to Plaintiff's FMCSA Drug and Alcohol Clearinghouse record.

31. At 1:20 p.m. the same day, Tenstreet notified Plaintiff that his Clearinghouse result ordered by Swift was available. The decrypted pre-adverse packet includes a Clearinghouse result of Driver Not Prohibited, with no open violations.

32. The Clearinghouse query proves Swift was then treating Plaintiff as a prospective commercial-driver hire. It is not a Penal Code section 290.46 disclosure.

C. The Pre-Adverse and Post-Adverse Letters

33. On Tuesday, September 26, 2023, at 3:09 a.m., Swift Recruiting (recruitadmin@swifttrans.com) emailed a message titled 'Swift Transportation - FCRA,' stating that an important communication was attached as Pre_Adverse_Action_Letter_76326281-1916808-encrypted.pdf and that the password was the last four digits of Plaintiff's Social Security number.

34. The pre-adverse attachment has been decrypted. It is a composite screening packet. It includes completed criminal-file components returning Clear, an NSOPW component that remained Processing on every snapshot, a Clearinghouse result of Driver Not Prohibited, an MVR, PSP inspection history, and CDLIS information.

35. On Thursday, October 5, 2023, at 3:09 a.m., Swift Recruiting emailed a second 'Swift Transportation - FCRA' message attaching Post_Adverse_Action_Letter_76326281-1916809_em.pdf.

36. The enclosed letter is on Swift Transportation Co. of Arizona LLC letterhead, dated October 5, 2023, 5:09 a.m., addressed to Brendan Ngehsi Nforbi at 1455 Cat Tail Drive, Stockton, California 95204. It states that offers of employment at Swift are contingent upon successful completion of a background check, and that the letter serves as notification that

Swift had decided not to employ Plaintiff based in whole or in part on a consumer report.

37. The letter states that Asurint (Cleveland, Ohio), Tenstreet (Tulsa, Oklahoma), DriverIQ (Tulsa, Oklahoma; disputes at Cisive), FMCSA-DOT, and The Work Number / Equifax Workforce Solutions provided consumer reports which, in whole or in part, influenced the employment decision.

38. The October 5 letter says a copy of the consumer report and a Summary of Rights were attached. The decrypted September 26 packet is the report-side paper in Plaintiff's files. It does not contain a completed NSOPW result, a California Sex Offender Registry source line, or a separate later Asurint, Tenstreet, or DriverIQ printout showing a completed registry hit.

39. Civil Code section 1786.40(a) required, if an investigative consumer report had been obtained, that Swift advise Plaintiff that an investigative consumer report had been obtained and supply the agency's name and address. The October 5 letter named agencies and stated that consumer reports influenced the decision. It did not advise that an investigative consumer report had been obtained. Naming agencies is not that advice.

D. Screening Inference, Comparators, and Pretext

40. Plaintiff is a person as to whom information is disclosed on California's Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

41. Swift ordered an NSOPW sex-offender-website search. That component remained Processing on every snapshot in the packet sent with the pre-adverse notice. Swift then denied employment based in whole or in part on consumer reports. The completed criminal, Clearinghouse, and MVR components in the packet do not themselves explain a registry-based

denial.

42. Plaintiff alleges, on information and belief and as an ultimate fact, that between the September 26 snapshots and the October 5 decision, the in-process NSOPW component was drawing California Megan's Law website / California Department of Justice registry data concerning Plaintiff, and that Swift used that preliminary output, in whole or in part, in the October 5, 2023 denial.

43. On information and belief, the same consumer, screened in the same period for employment, returned California-registry source fields. Plaintiff does not allege that any other employer's report is Swift's report, does not allege that Asurint, Tenstreet, or DriverIQ is First Advantage, and does not attach or describe those reports as if they were Swift's report.

44. Searching a public website is not a free pass. Subdivision (j)(3)'s reference to publicly available information does not authorize employment use of Megan's Law disclosures. Information disclosed pursuant to Penal Code section 290.46 does not lose that character because a vendor also searched NSOPW or another public sex-offender compilation.

45. Alternative explanations -- a failed Clearinghouse result, a driving-record or crash disqualification, a lawful criminal-history adjudication under a statute that actually authorizes the use, a CDL defect, or a withdrawal of the application -- can be tested against a discrete set of records in Swift's and its vendors' possession.

46. If production later shows a completed NSOPW returning no record and no preliminary registry use, Count One will stand or fall on that file after production. Counts Two and Three do not depend on proving a completed registry hit.

47. The use was not to protect a person at risk within the meaning of section

290.46(j)(1). A general commercial-driver assignment is not, without more, that narrow authorization. FMCSA authorization to query the Clearinghouse or PSP is not authorization to use Megan's Law website information.

E. Harm

48. As a result of the decision, Plaintiff lost the Class A Driver opportunity, including the wages and benefits of that position, according to proof and subject to mitigation. The file does not state a wage rate. Plaintiff does not invent one.

49. He also suffered emotional distress, humiliation, and anxiety from an unexplained denial he is informed and believes rested on a status the Legislature has forbidden employers to use.

50. Plaintiff has sought replacement employment and does not claim a guaranteed lifetime expectancy from an unaccepted driver application. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

FIRST CAUSE OF ACTION

Unauthorized Employment Use of Registry Information / Cal. Penal Code section 290.46(j)(2)(E) and (j)(4)(A) / Against Swift Transportation Co. of Arizona LLC

51. Plaintiff realleges paragraphs 1 through 50. This count is a liability created by statute. It is timely under Code of Civil Procedure section 338(a) from the September 26 / October 5, 2023 employment use. This count does not plead a delayed-discovery date.

52. Penal Code section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to section 290.46 for purposes relating to employment except as authorized by paragraph (1) or another provision of law.

53. Plaintiff alleges, on information and belief and as an ultimate fact, that the in-process NSOPW component was drawing California Megan's Law website / California Department of Justice registry data concerning Plaintiff, and that Swift used that preliminary output, in whole or in part, in the Class A Driver decision. The user is the employer that takes the information into account, not a vendor that merely retrieves it.

54. Plaintiff does not allege that the printed snapshots contain a completed NSOPW hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The use alleged is the use of preliminary registry information from that in-process component.

55. The use related directly to employment. It was not authorized by section 290.46(j)(1) or by any other provision of law applicable to that application. It was a substantial factor in the decision and caused the loss alleged.

56. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A), including actual damages, any amount the trier of fact determines not exceeding three times actual damage and not less than $250, attorney's fees, exemplary damages, or a civil penalty not exceeding $25,000. The $25,000 figure is a cap on the civil penalty, not a substitute floor. He does not presently allege a pattern or practice sufficient for subdivision (j)(4)(B).

SECOND CAUSE OF ACTION

California Investigative Consumer Reporting Agencies Act / Cal. Civ. Code sections 1786.40 and 1786.50 / Against Swift Transportation Co. of Arizona LLC

57. Plaintiff realleges paragraphs 1 through 50.

58. On information and belief, one or more of the agencies Swift named assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes, and Swift was the user of that information before the October 5, 2023 decision.

59. Civil Code section 1786.40(a) required Swift, when employment was denied under circumstances in which an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the investigative consumer reporting agency's name and address. Swift's October 5 letter named agencies and cities. It did not advise that an investigative consumer report had been obtained.

60. This section 1786.40 omission is pleaded as a separate act from Count One. Plaintiff does not allege that section 1786.40 required Swift to identify the decisive component or to complete the NSOPW search. This count does not plead a delayed-discovery date.

61. This count does not depend on proving Penal Code section 290.46(j). If Defendants establish that the reports were ordinary consumer reports and not investigative, this count does not apply. Plaintiff does not presently plead a CCRAA count.

62. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, together with costs and any attorney's fees recoverable if counsel later appears, and punitive damages if the violation is proven grossly negligent or willful.

THIRD CAUSE OF ACTION

Unlawful and Unfair Business Practices / Cal. Bus. & Prof. Code section 17200 / Against Swift Transportation Co. of Arizona LLC

63. Plaintiff realleges paragraphs 1 through 62.

64. Swift engaged in unlawful practices by violating, to the extent proven, Penal Code section 290.46(j)(2)(E) and Civil Code section 1786.40. It engaged in unfair practices because the gravity of denying employment on a criterion the Legislature has forbidden, or on consumer reports without the investigative-report advice the statute required, outweighs any utility of taking adverse action while a sex-offender-website component remained Processing.

65. Plaintiff suffered injury in fact and lost money or property through the lost Swift employment opportunity, reliance expenditures, and employment-search costs to be proven. He seeks restitution only of vested money or property Swift acquired, not unearned future wages.

66. On information and belief, Swift continues to use the same or similar standardized screening procedures for California driver applicants. Plaintiff seeks injunctive relief requiring Swift to cease prohibited employment use of California registry information in California recruiting and to preserve and disclose the source and audit trail of Plaintiff's screening, together with restitution under Business and Professions Code section 17203.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendant as follows:

A. Actual, consequential, and economic damages according to proof, without double

recovery;

B. The remedies authorized by Penal Code section 290.46(j)(4)(A);

C. ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

D. Restitution under Business and Professions Code section 17203 of vested money or property Defendant acquired, not unearned future wages, and injunctive relief;

E. Costs of suit and attorney's fees only to the extent authorized and recoverable, including if counsel later appears;

F. Prejudgment and post-judgment interest as allowed by law; and

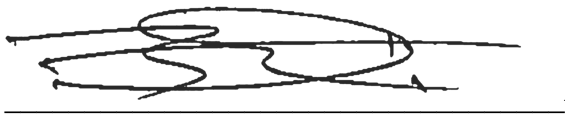
G. Such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

Dated: September 15, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona